EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FOURTH SECTION

DECISION

Application no. 11182/10
Koba DAVITASHVILI
against Georgia

The European Court of Human Rights (Fourth Section), sitting on 1 December 2015 as a Committee composed of:

Boštjan M. Zupančič, *President,*
Paulo Pinto de Albuquerque,
Iulia Antoanella Motoc, *judges,*

and Fatoş Aracı, *Deputy Section Registrar,*

Having regard to the above application lodged on 18 February 2010,

Having deliberated, decides as follows:

THE FACTS

1. The applicant, Mr Koba Davitashvili, is a Georgian national, who was born in 1971 and lives in Tbilisi. He was represented before the Court by Ms L. Mukhashavria and Mr N. Kvaratskhelia, lawyers at Human Rights Priority, a non-governmental organisation based in Tbilisi.

2. The facts of the case, as submitted by the applicant, may be summarised as follows.

3. In the autumn of 2007 large-scale anti-government demonstrations were held in Tbilisi. The applicant, then an opposition politician, was one of the organisers and, along with several other political forces, took an active part in the demonstrations. On 7 November 2007 the events turned violent as the police dispersed the demonstrations by use of force and various crowd dispersal techniques, including water cannons, tear gas and rubber bullets.

4. According to the applicant, as the police had destroyed the sound equipment used during the demonstrations to address the crowd, on 7 November 2007 he went to a marketplace to purchase a new set of

equipment. On arriving at the marketplace, he was allegedly attacked by a group of unidentified men and abducted; he was taken to the town of Gori (82 km from Tbilisi), where he was severely beaten up and left at the door of a military hospital located in the same town. On his admission to the military hospital he was allegedly close to death: his face and body were covered with bruises and he had severe concussion. According to the applicant, the medical staff of the military hospital initially refused to let him contact his family and party members, and were reluctant to provide him with the requisite medical treatment.

5. By a letter of 20 March 2008, the Office of the Prosecutor General of Georgia informed the Public Defender of Georgia that on 9 November 2007 a criminal investigation had been opened into the applicant's alleged abduction and ill-treatment. The letter also stated, without specifying the date, that a medical examination of the applicant had been conducted and that he had also been questioned as a victim.

6. The applicant claimed that he had constantly enquired about the ongoing investigation, but had been denied any information. On 15 March, 15 April and 28 May 2010, having received the present application, the Court repeatedly invited the applicant to provide copies of his letters of enquiry. On 2 August 2010 Ms L. Mukhashavria, the applicant's representative, informed the Court that the applicant had failed to furnish copies of the requested letters.

7. The applicant claimed that he should not be required to wait endlessly for the outcome of the ongoing criminal investigation into his alleged abduction and ill-treatment, as it had been clear from the outset that the authorities were unable to conduct a meaningful investigation.

COMPLAINTS

8. The applicant, citing Articles 2, 3, 5, 8, 10, 11, 13 and 14 of the Convention and Article 1 of Protocol No. 12, complained that he had been abducted and ill-treated and that there had been no effective investigation thereof.

THE LAW

9. The Court notes that in the part of the application form reserved for statements relating to admissibility issues under Article 35 § 1 of the Convention, the applicant claimed that he should not be required to wait endlessly for the final outcome of the criminal investigation (see paragraph 7 above) about which he had not enquired for more than three

years. The Court considers that, rather than addressing the question of whether or not the applicant has complied with the exhaustion requirement under Article 35 § 1 of the Convention, it should take account of the relevant principles underlying the six-month rule.

10. The Court has summarised the applicable principles regarding the rationale of due diligence and expedition under the six-month rule in the leading case of *Akhvlediani and Others v. Georgia* ((dec.), no. 22026/10, §§ 23-28, 9 April 2013).

11. In the present application, although the authorities had initiated, presumably of their own motion, a criminal investigation into the applicant's alleged abduction and ill-treatment, the applicant failed to demonstrate that he had ever enquired about the progress of the ongoing criminal investigation for more than three years after the alleged incident and before lodging the present application with the Court. In this connection, the Court emphasises that the fact that the authorities opened a criminal investigation into the alleged abduction and beating of the applicant does not relieve the applicant of his own obligation to undertake elementary steps and seek information from the relevant authorities about the investigation's progress or the lack thereof (see *Akhvlediani and Others*, cited above, § 26; *Manukyan v. Georgia* (dec.), no. 53073/07, § 30, 9 October 2012; *Deari and Others v. "the former Yugoslav Republic of Macedonia"* (dec.), no. 54415/09, 6 March 2012; Bayram and Yıldırım v. Turkey (dec.), no. 38587/97, ECHR 2002 III; and *Gasyak and Others v. Turkey*, no. 27872/03, § 58, 13 October 2009).

12. Alternatively, if in the aftermath of the alleged acts the applicant, as he claimed, was confident about the authorities' inability to conduct a meaningful criminal investigation (see paragraph 7 above), instead of waiting inactively for more than three years, he could then have applied to the Court within six months of the alleged incident, that is by 7 May 2008 at the latest (compare with *Akhvlediani and Others*, cited above, § 26 and *Manukyan*, also cited above, § 29). The Court notes that the applicant did not explain to the Court why he had waited for more than three years before lodging the present application. Moreover, even if he had been unaware of the alleged ineffectiveness of the ongoing investigation for such a long period, this was clearly due to his own negligence and lack of initiative. These circumstances can hardly be considered to be compatible with the principle of legal certainty and the expectation that applicants act with due diligence and expedition at the domestic level (*ibid*).

13. In view of all the above circumstances, the Court considers that, irrespective of any time-limits that might be envisaged by the relevant national law for bringing criminal complaints of police abuse (see *Akhvlediani and Others*, cited above, § 27), the wholly unexplained inactivity on the part of the applicant and indifference towards the ongoing investigation for over three years fell foul of the major purpose of the

six-month rule under Article 35 § 1 of the Convention (see also *Baybora and Others v. Cyprus* (dec.), no. 77116/01, 22 October 2002).

14. It follows that the present application has been introduced out of time and must be rejected in accordance with Article 35 §§ 1 and 4 of the Convention.

For these reasons, the Court unanimously

Declares the application inadmissible.

Done in English and notified in writing on 7 January 2016.

Fatoş Aracı
Deputy Registrar

Boštjan M. Zupančič
President